

Draft email to Avv. Primo Belardi — English

Note: This is the English draft of the proposed email to Avv. Belardi, for Grahame's review. The Italian version will be produced once the content is approved. Do not send this English version to Belardi — it is a working document only.

From: Grahame McGirr <gmcgirr@naissance.co.uk>

To: Primo Belardi <avv.primobelardi@gmail.com>

Subject: Naissance UK Ltd / Curatela Fallimento Agricola Gavioli — defence instructions and settlement authority

Dear Avv. Belardi,

Thank you for your email of 17 April and for your analysis of the trustee's Ricorso. I confirm in general terms my agreement with your proposed direction — the *errore materiale* argument on the 2018 Istanza, the subordinate reservation of Avv. Fiorilli's professional-indemnity position, and opening a settlement dialogue in parallel with the costituzione.

Before you draft the pleading I would like to record some points that I think are important to incorporate, based on a complete re-reading of the documents you forwarded on 30 March and the additional material I forwarded on 18 April.

1. The 2018 Istanza is genuinely internally inconsistent — and I was not involved in its drafting

Clause 3 of the Istanza recites a credit of **€1,118,438.29** while clause 4's parenthetical calculation writes out **€572,438.29 (1,188,438.29 less the assignment sum of €616,000)**. The arithmetic only reconciles to €1,188,438.29, and all the documents attached to the Istanza (the 28.07.2017 credit assignment contracts) consistently show €1,188,438.29. Clause 3 is therefore almost certainly a typographical error.

I would add this: I had **no direct contact with Avv. Fiorilli** at the time of the 2018 Istanza. Communication passed through Argo Ge.Re.Cre.; Fiorilli dealt on my behalf. I was not asked to approve and did not approve the €577,199.76 admission figure. In my view the *errore materiale* argument has both an arithmetic hook (the clause 3 vs clause 4 inconsistency) and a procedural hook (the lack of client instruction behind the reduced figure).

I understand that the 2019 admission decree for €572,438.29 is *res judicata endofallimentare* and cannot be reopened on errore-materiale grounds alone. I am therefore not expecting this point to defeat the claim on its own. I am asking that it be pleaded as contextual support to the defence and the settlement conversation.

2. Live quantum challenges in the trustee's €629,975.04

The trustee's figure of €629,975.04 is built as €616,000 property assignment + €13,975.04 (= €10,043.04 "higher amount distributed, net of procedural expenses advanced" + €3,932.00 "legal expenses not admitted to the bankruptcy liabilities"). I would like to contest two specific line items within that figure:

- **€3,932.00 "legal expenses not admitted to the bankruptcy liabilities"**. By the trustee's own characterisation this sum sits outside the formal concorso. If so, it cannot be the subject of *ex lege* restitution under art. 110 L.F. / art. 2033 c.c. I understand the trustee's likely counter (receipt without concorsual title is itself indebitum under art. 111-bis L.F.; Cass. 17590/2019), but the point is arguable both ways and I would be grateful for your view.
- **€4,761.47 of prededuzione** (legal fees in RGE 187/2015) excluded by the G.D. at 2019 admission. Without reopening that ruling, I would like to reserve Naissance's right to have these expenses treated as a legitimately borne cost, by way of equitable exception to any amount of restitution.

I recognise these two items are of modest monetary effect. I am not asking you to present them as decisive; I am asking that they be preserved and argued.

3. The foreclosure distribution plan of 04.04.2019

The 04.04.2019 progetto di distribuzione was approved by the Enforcement Judge at a hearing, without opposition from the curator or any creditor, and was not impugned within the statutory window under art. 512 c.p.c. I understand that Cass. 23482/2018 and Cass. 12673/2022 hold that such distributions to the fondiario creditor are provisional pending final bankruptcy ranking, and that the finality of the distribution plan does not on its own defeat the trustee's restitution claim. I am **not** asking you to plead finality in the abstract.

What I am asking is that you pull the full text of both Cassazione cases and consider whether their facts can be distinguished from Naissance's case. In particular: in those cases, was the curator on notice of the distribution and did he intervene in time? Here, was the curator notified of the 04.04.2019 hearing, and did the curator attend? If the curator had the opportunity to intervene and did not, that is a distinguishing fact. I would be grateful for your honest view, before the pleading is settled, on whether genuine factual distinguishing is available.

I would also ask you to consider requesting document production under art. 210 c.p.c. of the 04.04.2019 hearing minutes, the distribution plan as filed, and the decree executing the state of liabilities (including the specific reasoning on the €4,761.47 prededuzione exclusion).

4. Interest start date

The trustee claims legal interest from 01.07.2025 (following his informal *diffide*). Under Italian law, interest on a restitution of this type should in my understanding run from the judicial demand

(30.12.2025 Ricorso), not from the informal letter. This is a small but legitimate point and I would like it challenged.

5. Documentary position and market value (factual support)

On the evidence I have forwarded:

- Naissance acquired the credit in July 2017 via a double assignment (Banca CRAS → Argo Ge.Re.Cre. → Naissance) for a face value of **€1,188,438.29**.
- Naissance paid approximately **€132,000** in documented recovery costs: FX wires of €57,000 (26.04.2018) and €20,000 (01.05.2018) to Argo Ge.Re.Cre., plus two cost cheques of €30,000 (executed as FX wire 05.06.2018 — same payment) and €45,000.
- Contemporaneous pre-auction expressions of interest on the Chianciano Terme property, forwarded via Gordana Lupi from Marco Gavioli: **€550,000** (06.09.2017) and **€620,000** (12.09.2017). Auction clearing price: €616,000.

I would ask that the defence plead, as part of the equitable frame, the following commercial reality: Naissance acquired a credit at face value of €1,188,438.29, the best genuine pre-auction market view of the underlying asset was €620,000, and Naissance paid €132,000 out-of-pocket to run the recovery. On that basis Naissance's net recovery is of the order of €488,000 — leaving Naissance approximately **€700,000 short** on the underlying credit. I understand this point does not formally offset the claim under art. 56 L.F. and that a formal counterclaim for the shortfall would invite a *par condicio creditorum* objection under art. 2741 c.c. I am therefore not asking you to plead it as a formal counterclaim. I am asking you to plead it as the equitable frame within which the technical points above are heard, and to use it in the settlement conversation.

I would add that the trustee's own "received" figure of €629,975.04 itself exceeds every pre-auction market indication, which suggests that the €13,975.04 of non-market-value components is itself something the defence can point to.

6. Handling of Avv. Fiorilli

I confirm your recommendation not to join Avv. Fiorilli to this proceeding. However, given the limitation considerations, I would ask you to **draft a PEC diffida to Avv. Fiorilli this month**, interruptive of prescription on any future professional-negligence action. I do not want it served before the outcome of this proceeding is clearer, but I want it drafted and ready.

7. Settlement authority

I confirm your proposal to open a parallel settlement channel with the Curatore. For the avoidance of doubt, I authorise you from now on to negotiate within the following parameters:

- **Opening:** €20,000 – €25,000 all-in (capital, interest, legal costs), saldo e stralcio;

- **Target landing:** €30,000 – €40,000;
- **Maximum authorised ceiling (walkaway):** €45,000. Above this number I would prefer to proceed to hearing.

I am aware that if the case goes to hearing and is lost, my total exposure on capital + interest + curator's costs + contributo unificato + our own costs is in the range €70,000 – €85,000. The €45,000 ceiling is set on that basis.

8. Operational questions for you

Before the pleading is drafted, I would be very grateful for:

1. Your confirmation of the procedural vehicle (*memoria difensiva* vs *comparsa di costituzione e risposta* under the rito semplificato) and of the 04.05.2026 costituzione deadline / 14.05.2026 hearing.
2. Your view — after reading the full text of Cass. 23482/2018 and Cass. 12673/2022 — on whether their facts can be genuinely distinguished in Naissance's favour.
3. Your drafting timetable in view of the 4 May deadline.
4. Your confidential estimate of the probability of success on each of the points above, in particular on the €3,932 challenge and on the factual distinguishing of the two Cassazione cases.
5. Your view on the €30–40k settlement target — is it realistic against this curator, and if not, what range would you expect?

I am available for a short telephone or video call in the next few days if that would help.

Thank you again for your work on this. I look forward to your response and to seeing a draft of the memoria in good time before the deadline.

Kind regards,

Grahame
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